

PROPOSED

HOUSE OF REPRESENTATIVES AMENDMENTS TO H.B. 2999

(Reference to proposed WENINGER s/e amendment dated 2/11/2026; 1:35 pm)

1 Page 12, after line 47 insert:

2 "Sec. 2. Section 11-495, Arizona Revised Statutes, is amended to
3 read:

4 11-495. Taxpayers' information fund

5 A. A taxpayers' information fund is established in each county
6 treasury consisting of monies collected from the public records copy
7 surcharge imposed pursuant to section 11-496, the tax lien processing fee
8 imposed pursuant to section 42-18116, subsection C, fifteen dollars of each
9 judgment deed fee collected pursuant to section 42-18205, subsection A,
10 interest earned from the elderly assistance fund pursuant to section
11 42-17401, the community facilities district special assessment fee imposed
12 pursuant to section 48-721, THE STATE HOUSING AFFORDABILITY DISTRICT
13 SPECIAL ASSESSMENT FEE IMPOSED PURSUANT TO SECTION 48-7023 and the fees
14 authorized for collecting municipal fire and emergency services fees in
15 certain areas of the county as prescribed in section 9-500.23.

16 B. The county treasurer shall administer the fund and spend monies
17 in the fund only to defray the cost of converting or upgrading an automated
18 public information system as follows:

- 19 1. Purchasing computer hardware and software.
- 20 2. Training employees to operate the system.
- 21 3. Maintaining the system, including purchasing equipment
22 maintenance agreements.
- 23 4. Updating the system hardware and software.

1 5. In counties with a population of more than two million persons,
2 notifying property owners of the tax and ownership status of a taxpayer's
3 parcel prior to the taxpayer's parcel being sold at a deed sale and the tax
4 and ownership status of any parcels being sold at a deed sale that are
5 adjacent to a taxpayer's parcel, prior to the deed sale.

6 C. The county treasurer shall annually submit to the board of
7 supervisors the amount of anticipated revenues under this section. If the
8 projected revenues are considered to be insufficient to establish and
9 maintain the fund at an adequate level, the monies may accumulate until
10 sufficient monies are available in the fund.

11 Sec. 3. Section 11-496, Arizona Revised Statutes, is amended to
12 read:

13 11-496. Public records copy; proceeds of sale; agent duties;
14 surcharge; special district assessments; deposit

15 A. In addition to the fee prescribed by section 39-121.01,
16 subsection D, paragraph 1 or section 39-121.03, subsection A, the county
17 treasurer may impose a surcharge of not more than twenty-five ~~per cent~~
18 **PERCENT** of the fee charged for furnishing a copy, printout or photograph.

19 B. A county treasurer who is designated as a registrar pursuant to
20 section 35-491 may impose a surcharge of not more than twenty-five ~~per cent~~
21 **PERCENT** of the average fee charged by commercial bank trust departments
22 during the previous calendar year for discharging registrar, transfer and
23 paying agent duties.

24 C. The county treasurer may impose and collect a fee for expenses
25 directly related to the collection of special assessments for a community
26 facilities district pursuant to section 48-721, **A STATE HOUSING**
27 **AFFORDABILITY DISTRICT PURSUANT TO SECTION 48-7023** and a revitalization
28 district pursuant to section 48-6815 and for collecting municipal fire and
29 emergency services fees from owners of record in certain areas of the
30 county as prescribed in section 9-500.23.

D. The county treasurer shall deposit monies collected pursuant to this section in the taxpayers' information fund established by section 11-495."

Renumber to conform

Page 25, line 34, strike "INFRASTRUCTURE FINANCE" insert "STATE HOUSING AFFORDABILITY"

Page 26, line 15, strike "AN INFRASTRUCTURE FINANCE" insert "A STATE HOUSING AFFORDABILITY"

Between lines 16 and 17, insert:

"10. "EXECUTIVE DIRECTOR" MEANS THE EXECUTIVE DIRECTOR OF THE AUTHORITY OR THE EXECUTIVE DIRECTOR'S DESIGNEE."

Renumber to conform

Between lines 27 and 28, insert:

"15. "MAXIMUM AUTHORIZED TAX RATE" MEANS THE MAXIMUM TAX RATE FOR AD VALOREM TAXES PLEDGED TO SECURE GENERAL OBLIGATION BONDS APPROVED AT AN ELECTION AUTHORIZING THE LEVY OF AD VALOREM TAXES AND THE ISSUANCE OF GENERAL OBLIGATION BONDS AND INDICATED IN THE PETITION, PROVIDED THAT THE MAXIMUM AUTHORIZED TAX RATE SHALL NOT EXCEED \$10 PER \$100 OF NET LIMITED ASSESSED PROPERTY VALUATION OF PROPERTY WITHIN THE BOUNDARIES OF THE DISTRICT."

Renumber to conform

Between lines 28 and 29, insert:

17. "NET PREMIUM" MEANS THE DIFFERENCE BETWEEN THE PAR AMOUNT OF THE GENERAL OBLIGATION BOND ISSUE AND THE GENERAL OBLIGATION BOND ISSUE PRICE THAT IS DETERMINED PURSUANT TO UNITED STATES DEPARTMENT OF THE TREASURY REGULATIONS.

Renumber to conform

Between lines 33 and 34, insert:

"19. "OWNER" MEANS THE PERSON OR ENTITY THAT, ON THE DAY THE ACTION, ELECTION OR PROCEEDING IS BEGUN OR HELD, APPEARS TO BE THE FEE-TITLE OWNER OF REAL PROPERTY AS SHOWN ON THE PROPERTY TAX ASSESSMENT ROLL."

Renumber to conform

Page 26, line 41 strike the colon insert "ALL IMPROVEMENTS LISTED IN THIS PARAGRAPH THAT WILL RESULT IN A BENEFICIAL USE PRINCIPALLY TO LAND WITHIN THE GEOGRAPHICAL LIMITS OF THE DISTRICT AND MAY INCLUDE A DISTRICT'S SHARE OF ANY IMPROVEMENTS LISTED IN THIS PARAGRAPH IF THE DISTRICT BOARD DETERMINES SUCH SHARE IS PROPORTIONATE TO THE BENEFICIAL USE OF SUCH IMPROVEMENTS TO LAND WITHIN THE GEOGRAPHICAL LIMITS OF THE DISTRICT, IMPROVEMENTS WITHIN OR OUTSIDE THE GEOGRAPHICAL LIMITS OF THE DISTRICT, NECESSARY OR INCIDENTAL WORK, INCLUDING LAND CLEARANCE AND ENVIRONMENTAL REMEDIATION ACTIVITIES, WHETHER NEWLY CONSTRUCTED, RENOVATED OR EXISTING, AND ALL NECESSARY OR DESIRABLE APPURTENANCES. FOR THE PURPOSES OF THIS PARAGRAPH, ADOPTION BY THE DISTRICT BOARD OF A RESOLUTION OF INTENT PURSUANT TO SECTION 48-7008 SHALL CONCLUSIVELY ESTABLISH THAT THE IMPROVEMENTS OR, IF APPLICABLE, SHARE OF THE IMPROVEMENTS THAT ARE THE SUBJECT OF THE RESOLUTION WILL RESULT IN A BENEFICIAL USE PRINCIPALLY TO LAND WITHIN THE GEOGRAPHICAL LIMITS OF THE DISTRICT. PUBLIC INFRASTRUCTURE IMPROVEMENTS ARE:"

Page 27, line 45, after "ISSUANCE" insert "AND COSTS OF ISSUANCE OF THE BONDS AND UNDERWRITER AND PLACEMENT AGENT FEES"

Page 28, line 13, strike "AN INFRASTRUCTURE FINANCE" insert "A STATE HOUSING AFFORDABILITY"

Line 17, after "PROPERTY" insert ", PROVIDED THAT ALL NONCONTIGUOUS PROPERTY SHALL BE LOCATED IN THE SAME COUNTY AND SHALL LIE WITHIN FIVE MILES OF THE BOUNDARY OF OTHER PROPERTY WITHIN THE DISTRICT, MEASURED IN A STRAIGHT LINE BETWEEN SUCH PARCEL BOUNDARIES. IF ANY PORTION OF A DISTRICT IS LOCATED WITHIN THE CORPORATE LIMITS OF A MUNICIPALITY, THE ENTIRE DISTRICT SHALL AT ALL TIMES BE LOCATED WITHIN THE CORPORATE LIMITS OR WITHIN THE ADOPTED PLANNING AREA OF THAT MUNICIPALITY, AS SUCH LIMITS OR PLANNING AREA MAY BE AMENDED FROM TIME TO TIME"

Strike lines 22 through 27

Renumber to conform

Between lines 42 and 43, insert:

1 "8. A PRELIMINARY FINANCING PLAN THAT INCLUDES THE ANTICIPATED
2 SOURCES AND USES OF MONIES FOR THE PUBLIC INFRASTRUCTURE."
3 Renumber to conform
4 Page 28, line 43, after "9." insert "IF THE DISTRICT PROPOSES TO ISSUE ASSESSMENT
5 BONDS,"
6 Line 44, strike PROJECTIONS AS TO" insert "THE PROJECTED MARKET VALUE OF THE
7 REAL PROPERTY AND IMPROVEMENTS IN THE DISTRICT AFTER COMPLETION OF THE
8 PUBLIC INFRASTRUCTURE PROPOSED TO BE FINANCED WITH SUCH ASSESSMENT BONDS.
9 10. IF THE DISTRICT PROPOSES TO ISSUE GENERAL OBLIGATION BONDS, A
10 THIRD-PARTY MARKET STUDY THAT INCLUDES PROJECTIONS OF"
11 Line 45, strike "AND MARKET VALUE"
12 Line 46, strike "AND ASSESSMENT BONDS"
13 Line 47, after "OUTSTANDING" insert "TOGETHER WITH INFORMATION DEMONSTRATING
14 THAT DEBT SERVICE ON SUCH BONDS CAN BE SUPPORTED WITHIN THE MAXIMUM
15 AUTHORIZED TAX RATE"
16 Page 29, line 7, after "ANY" insert "EXISTING AND APPLICABLE"
17 Line 8, strike ", IF ANY,"
18 Line 9, strike "PROPOSED DISTRICT OR TO THE PUBLIC"
19 Strike line 10 insert "DISTRICT AND A CERTIFICATION THAT THE FORMATION OF THE
20 DISTRICT WILL NOT VIOLATE ANY SUCH AGREEMENT."
21 Line 16, strike "ORGANIZATIONAL STRUCTURE" insert "LEGAL NAME"; strike "THAT"
22 Strike lines 17 and 18
23 Line 19, strike "THE LAND AREA" insert "HAVING FEE-TITLE OWNERSHIP OF ANY REAL
24 PROPERTY"
25 Line 41, strike "AUTHORITY SHALL NOTIFY THE PETITIONER AND THE"
26 Line 42, after "AFTER" insert "WRITTEN"
27 Line 43, strike "CORRECT" insert "SUBMIT CORRECTIONS OF"; after "IF THE"
28 insert "CORRECTIONS OF THE"; strike "CORRECTED" insert "SUBMITTED TO THE
29 AUTHORITY"
30 Line 44, after "NOTICE" insert "OR DO NOT CORRECT THE DEFICIENCIES"
31 Between lines 44 and 45, insert:

F. FOR PURPOSES OF THIS CHAPTER, ALL CERTIFICATIONS, DETERMINATIONS, APPROVALS, FINDINGS AND ACTIONS REQUIRED TO BE MADE BY THE AUTHORITY SHALL BE MADE BY THE EXECUTIVE DIRECTOR. NOTWITHSTANDING ANY OTHER LAW, NO ACTION, APPROVAL, RESOLUTION OR VOTE OF THE BOARD OF DIRECTORS OF THE AUTHORITY IS REQUIRED FOR ANY CERTIFICATION, DETERMINATION OR ACTION TAKEN BY THE EXECUTIVE DIRECTOR PURSUANT TO THIS CHAPTER. ANY ACTION TAKEN BY THE EXECUTIVE DIRECTOR PURSUANT TO THIS CHAPTER IS DEEMED AN ACTION OF THE AUTHORITY.

G. FEES AND OTHER CHARGES THAT ARE ASSESSED BY THE AUTHORITY IN CONNECTION WITH THE SUBMISSION AND CONSIDERATION OF AN APPLICATION AND PETITION TO FORM A DISTRICT SHALL NOT EXCEED \$15,000 FOR EACH PETITION. IF A PETITION IS DENIED BY THE AUTHORITY, THE AUTHORITY MAY NOT ASSESS A FEE OR OTHER CHARGE IN CONNECTION WITH THE SUBMISSION AND CONSIDERATION OF A REVISED PETITION THAT IS SUBMITTED WITHIN ONE YEAR AFTER THE DENIAL.

Page 30, strike line 3, insert:

"1. WHETHER ANY APPRAISAL OR THIRD-PARTY MARKET STUDY PROVIDED IN CONNECTION WITH THE PETITION IS COMPLETE."

Line 4, strike "ENGINEERING SUFFICIENCY" insert "WHETHER THE DESCRIPTION"; after "INFRASTRUCTURE" insert "IN THE GENERAL PLAN APPEARS COMPLETE ON ITS FACE AND DOES NOT CONTAIN OBVIOUS ERRORS, WITHOUT ANY INDEPENDENT ENGINEERING INVESTIGATION, ANALYSIS OR VERIFICATION"

Strike line 5, insert:

"3. WHETHER THE PRELIMINARY FINANCING PLAN INCLUDES THE ANTICIPATED SOURCES AND USES OF MONIES FOR THE PUBLIC INFRASTRUCTURE."

Strike line 6

Re-number to conform

Line 7, strike "PROPOSED"; after "IS" strike remainder of line

Line 8, strike "INTEREST OF THIS STATE" insert "REASONABLY EXPECTED TO HAVE THE FINANCIAL ABILITY TO DISCHARGE ITS PROPOSED INDEBTEDNESS WITHIN THE MAXIMUM AUTHORIZED TAX RATE AND MAXIMUM AGGREGATE ASSESSMENT AMOUNT, AS APPLICABLE"

Line 9, after "ANY" insert "EXISTING AND"

1 Page 30, line 10, strike "GENERAL PLAN OR COMPREHENSIVE PLAN OR ANY EXISTING"
2 Line 11, strike "RELATING"; insert "OR OTHER AGREEMENT WITH THE MUNICIPALITY
3 OR THE COUNTY THAT RELATES"; after "TO" insert "THE"; after "LAND" insert
4 "INCLUDED"; after "THE" insert "BOUNDARIES OF THE"; after "DISTRICT" insert
5 "THAT WAS SUBMITTED TO THE AUTHORITY IN CONNECTION WITH THE PETITION"
6 Line 22, after the period strike remainder of line
7 Line 23, strike "FEASIBILITY FINDINGS THAT ARE REQUIRED BY THE PETITION AND,"
8 Line 24, strike "THOSE FINDINGS, THE AUTHORITY DETERMINED THAT" insert "THE
9 INFORMATION SUBMITTED IN CONNECTION WITH THE PETITION, INCLUDING ANY
10 APPRAISAL OR THIRD-PARTY MARKET STUDY,"
11 Line 25, after "DISCHARGE" strike "THE" insert "ITS"
12 Line 26, strike "ON A REASONABLE BASIS" insert "WITHIN THE MAXIMUM AUTHORIZED
13 TAX RATE AND MAXIMUM AGGREGATE ASSESSMENT AMOUNT, AS APPLICABLE"
14 Line 37, strike "ARE" insert "WILL BE"
15 Page 31, line 15, strike "REJECT" insert "DENY"; strike "IF" insert "UPON A
16 WRITTEN FINDING OF ONE OF THE FOLLOWING"
17 Line 17, strike "FEASIBILITY" insert "FINANCIAL"; after "INFORMATION" insert
18 "SUBMITTED IN CONNECTION WITH THE PETITION, INCLUDING ANY APPRAISAL OR
19 THIRD-PARTY MARKET STUDY,"
20 Line 19, strike "THE" insert "ITS"; strike "ON A REASONABLE BASIS" insert
21 "WITHIN THE MAXIMUM AUTHORIZED TAX RATE AND MAXIMUM AGGREGATE ASSESSMENT
22 AMOUNT, AS APPLICABLE"
23 Line 22, strike "CORRECT" insert "SUBMIT PROPOSED CORRECTIONS OF"
24 Line 27, after the period insert "SUCH ACTION WILL NOT CONSTITUTE A DENIAL OF
25 THE PETITION AND"
26 Line 38, strike "FILED" insert "RECORDED"; strike "CLERK" insert "COUNTRY
27 RECORDER OF THE COUNTY IN WHICH THE DISTRICT IS LOCATED"
28 Page 32, between lines 18 and 19, insert:
29 K. AFTER THE FORMATION ORDER IS ISSUED, THE OWNERS OF AT LEAST FIFTY
30 PERCENT OF THE LAND IN THE DISTRICT MAY PETITION THE AUTHORITY TO AMEND THE
31 FORMATION ORDER TO MODIFY THE POWERS OR FINANCIAL PARAMETERS OF THE
32 DISTRICT, INCLUDING ANY MAXIMUM AUTHORIZED TAX RATE, MAXIMUM AUTHORIZED

1 AGGREGATE PRINCIPAL AMOUNT OF GENERAL OBLIGATION BONDS, MAXIMUM AGGREGATE
2 ASSESSMENT AMOUNT OR MAXIMUM OPERATIONS AND MAINTENANCE TAX RATE. ANY SUCH
3 PETITION FOR AMENDMENT SHALL:

4 1. DESCRIBE THE PROPOSED AMENDMENTS TO THE FORMATION ORDER AND
5 GENERAL PLAN.

6 2. INCLUDE UPDATED FINANCIAL INFORMATION, INCLUDING AN UPDATED
7 PRELIMINARY FINANCING PLAN, SUFFICIENT TO ALLOW THE AUTHORITY TO DETERMINE
8 WHETHER THE DISTRICT IS REASONABLY EXPECTED TO HAVE THE FINANCIAL ABILITY
9 TO DISCHARGE ITS PROPOSED INDEBTEDNESS WITHIN THE REVISED MAXIMUM
10 AUTHORIZED TAX RATE AND MAXIMUM AGGREGATE ASSESSMENT AMOUNT, AS APPLICABLE.

11 3. DEMONSTRATE THAT THE PROPOSED AMENDMENTS DO NOT VIOLATE ANY
12 APPLICABLE STATUTORY ELIGIBILITY OR BOUNDARY REQUIREMENTS OR ANY
13 DEVELOPMENT AGREEMENT OR OTHER AGREEMENT WITH THE MUNICIPALITY OR COUNTY
14 RELATING TO THE LAND WITHIN THE DISTRICT.

15 L. THE AUTHORITY SHALL REVIEW AND ACT ON A PETITION FOR AMENDMENT
16 UNDER THE STANDARDS AND WITHIN THE TIME PERIODS PRESCRIBED IN SUBSECTIONS A
17 THROUGH E OF THIS SECTION, AND, IF APPROVED, SHALL ISSUE AND CAUSE TO BE
18 RECORDED AN AMENDED FORMATION ORDER REFLECTING THE APPROVED CHANGES.

19 M. ANY PETITION TO AMEND THE FORMATION ORDER THAT INCREASES THE
20 MAXIMUM AUTHORIZED TAX RATE OR MAXIMUM AGGREGATE ASSESSMENT AMOUNT SHALL BE
21 SIGNED BY ALL OWNERS OF ALL REAL PROPERTY IN THE DISTRICT.

22 N. THE AUTHORITY'S ISSUANCE OF A FORMATION ORDER PURSUANT TO THIS
23 CHAPTER IS A GOVERNMENTAL DETERMINATION OF STATEWIDE FINANCIAL COMPLIANCE
24 AND DOES NOT CONSTITUTE ZONING, PLANNING OR LAND-USE APPROVAL.

25 Page 32, line 25, after the period insert "SUBJECT TO SUBSECTION J OF THIS
26 SECTION"

27 Line 27, after the period insert "A DIRECTOR WILL RESIGN FROM THE BOARD OF
28 DIRECTORS IF AT ANY TIME DURING SUCH DIRECTOR'S TERM THE DIRECTOR IS NO
29 LONGER AN OWNER OF REAL PROPERTY WITHIN THE DISTRICT OR, IF SUCH DIRECTOR
30 WAS DESIGNATED OR APPOINTED BY AN OWNER OF REAL PROPERTY WITHIN THE
31 DISTRICT, SUCH OWNER OF REAL PROPERTY WITHIN THE DISTRICT IS NO LONGER AN

1 OWNER OF REAL PROPERTY WITHIN THE DISTRICT. SUCH DIRECTOR'S VACANCY WILL
2 BE FILLED PURSUANT TO SUBSECTION H OF THIS SECTION."

3 Page 33, line 10, strike "FINANCING" insert "GENERAL"

4 Line 28, strike the first and second "AUTHORITY" insert "REMAINING DIRECTORS"
5 Between lines 35 and 36, insert:

6 "J. IF A VACANCY OCCURS ON THE BOARD BECAUSE OF DEATH, RESIGNATION OR
7 INABILITY OF THE DIRECTOR TO DISCHARGE THE DUTIES OF DIRECTOR, AND THERE
8 ARE NO OWNERS OF REAL PROPERTY WITHIN THE DISTRICT OR INDIVIDUALS
9 DESIGNATED OR APPOINTED BY AN OWNER OF REAL PROPERTY WITHIN THE DISTRICT,
10 WHO ARE WILLING TO FILL SUCH VACANCY, THE AUTHORITY SHALL APPOINT A
11 DIRECTOR TO FILL THE VACANCY. THE DIRECTOR APPOINTED BY THE AUTHORITY IS
12 NOT REQUIRED TO BE A FEE-TITLE OWNER OF REAL PROPERTY WITHIN THE DISTRICT
13 OR AN INDIVIDUAL DESIGNATED OR APPOINTED BY A FEE-TITLE OWNER OF REAL
14 PROPERTY WITHIN THE DISTRICT. THE DIRECTOR APPOINTED BY THE AUTHORITY
15 SHALL HOLD OFFICE FOR THE REMAINDER OF THE UNEXPIRED TERM AND UNTIL THE
16 DIRECTOR'S SUCCESSOR IS ELECTED, UNLESS A FEE-TITLE OWNER OF REAL PROPERTY
17 WITHIN THE DISTRICT SUBMITS A WRITTEN REQUEST TO THE AUTHORITY AND THE
18 BOARD TO REPLACE THE DIRECTOR APPOINTED BY THE AUTHORITY. IN THAT EVENT,
19 THE AUTHORITY SHALL, AS SOON AS PRACTICABLE, APPOINT THAT FEE-TITLE OWNER
20 OF REAL PROPERTY WITHIN THE DISTRICT TO REPLACE THE DIRECTOR APPOINTED BY
21 THE AUTHORITY.

22 K. THE BOARD SHALL COMPLY WITH TITLE 38, CHAPTER 3, ARTICLE 3.1 AS A
23 SEPARATE POLITICAL SUBDIVISION."

24 Line 37, after "BE" insert "MAINTAINED BY THE CLERK AND"

25 Page 34, line 25, after "LOANS" insert ", ADVANCES OR OTHER OBLIGATIONS"; after
26 "PURPOSE" insert ", INCLUDING TO PROVIDE FOR THE PRESENT FINANCING OF COSTS
27 TO BE REIMBURSED FROM FUTURE DISTRICT REVENUES OR REIMBURSEMENTS RELATED TO
28 PUBLIC INFRASTRUCTURE"

29 Line 31, after "PURPOSES" insert ", AND TO RECOGNIZE, ASSIGN, CONFIRM OR
30 CONSENT TO THE ASSIGNMENT BY SUCH LANDOWNERS OF THEIR RIGHTS TO RECEIVE ANY
31 REIMBURSEMENTS OR PAYMENTS FROM THE DISTRICT FOR PUBLIC INFRASTRUCTURE

1 COSTS, INCLUDING TO OR IN FAVOR OF LENDERS, TRUSTEES OR OTHER FINANCING
2 PARTIES"

3 Page 35, line 38, strike "approval" insert "review by authority"

4 Page 36, strike lines 22 and 23

5 Renumber to conform

6 Between lines 26 and 27, insert:

7 "2. IF THE PUBLIC INFRASTRUCTURE TO BE CONSTRUCTED OR ACQUIRED IS
8 PROPOSED TO BE FINANCED WITH THE PROCEEDS OF GENERAL OBLIGATION BONDS, AN
9 APPRAISAL INDICATING THE PROJECTED MARKET VALUE OF THE REAL PROPERTY AND
10 IMPROVEMENTS IN THE DISTRICT AFTER THE PUBLIC INFRASTRUCTURE TO BE
11 CONSTRUCTED OR ACQUIRED BY THE DISTRICT WITH THE PROCEEDS OF SUCH BONDS IS
12 COMPLETED PLUS THE VALUE OF THE PUBLIC INFRASTRUCTURE OWNED BY THE DISTRICT
13 AND TO BE CONSTRUCTED OR ACQUIRED BY THE DISTRICT WITH THE PROCEEDS OF SUCH
14 BONDS."

15 Line 27, strike "BONDS ARE" insert "PUBLIC INFRASTRUCTURE TO BE CONSTRUCTED OR
16 ACQUIRED IS PROPOSED TO BE FINANCED WITH THE PROCEEDS OF"; after "A" insert
17 "THIRD-PARTY MARKET STUDY THAT INCLUDES PROJECTIONS OF THE LIMITED PROPERTY
18 VALUE OF REAL PROPERTY IN THE DISTRICT FOR EACH YEAR IN WHICH GENERAL
19 OBLIGATION BONDS ARE PROPOSED TO BE OUTSTANDING, TOGETHER WITH A"

20 Line 28, after "THE" insert "GENERAL OBLIGATION"

21 Between lines 29 and 30, insert:

22 "4. IF THE PUBLIC INFRASTRUCTURE TO BE CONSTRUCTED OR ACQUIRED IS
23 PROPOSED TO BE FINANCED WITH THE PROCEEDS OF ASSESSMENT BONDS, AN APPRAISAL
24 INDICATING THE AGGREGATE AS-IS MARKET VALUE OF REAL PROPERTY IN THE
25 DISTRICT AND THE PROJECTED MARKET VALUE OF THE REAL PROPERTY AND
26 IMPROVEMENTS IN THE DISTRICT AFTER COMPLETION OF THE PUBLIC INFRASTRUCTURE
27 PROPOSED TO BE FINANCED WITH SUCH ASSESSMENT BONDS."

28 Renumber to conform

29 Line 30, strike "BONDS ARE" insert "PUBLIC INFRASTRUCTURE TO BE CONSTRUCTED OR
30 ACQUIRED IS PROPOSED TO BE FINANCED WITH THE PROCEEDS OF"

31 Line 32, after "THE" insert "ASSESSMENT"

- 1 Page 36, line 35, after "OUTSTANDING" insert "AGGREGATE"; strike "DISTRICT"
2 insert "ALL"; after "BONDS" insert "OF THE DISTRICT"
3 Line 38, strike ", THE DISTRICT'S FINANCIAL ADVISOR"
4 Line 41, strike "VALUATION" insert "MARKET VALUE"
5 Strike lines 42 through 44
6 Renumber to conform
7 Line 46, strike ", OR BOTH,"; strike "THE"
8 Strike line 47
9 Line 48, strike "ANY, AND"; strike "AGREEMENTS RELATING" insert "AGREEMENT OR
10 OTHER AGREEMENT WITH THE MUNICIPALITY OR THE COUNTY THAT RELATES"
11 Line 49, strike "SUBJECT"; after "LAND" insert "INCLUDED WITHIN THE BOUNDARIES
12 OF THE DISTRICT THAT WAS SUBMITTED TO THE AUTHORITY IN CONNECTION WITH THE
13 PETITION"
14 Page 37, line 9, strike "NOTIFY" insert "PROVIDE WRITTEN NOTICE TO"
15 Line 15, after "CHAPTER" insert ", WHICH WRITTEN NOTICE SHALL IDENTIFY ANY
16 DEFICIENCIES"
17 Line 24, strike "Debt" insert "General obligation bonds debt"
18 Line 25, after "OF" insert "GENERAL OBLIGATION"
19 Line 26, strike "FULL FAITH AND CREDIT" insert "AD VALOREM TAXES"; strike "A"
20 insert "THE"
21 Line 27, strike "ESTIMATED" insert "PROJECTED"
22 Line 29, after "INFRASTRUCTURE" strike "OF" insert "TO BE CONSTRUCTED OR
23 ACQUIRED BY"; after "DISTRICT" insert "WITH THE PROCEEDS OF SUCH GENERAL
24 OBLIGATION BONDS"
25 Line 30, strike "OR" insert "BY THE DISTRICT AND"; after "BE" insert
26 "CONSTRUCTED OR"
27 Line 31, strike "THE" insert "SUCH GENERAL OBLIGATION"
28 Page 38, line 5, strike "TWENTY-FIVE" insert "THIRTY"
29 Line 10, after "DISTRICT" insert "DISTRICT, THE TERM OF WHICH MAY NOT EXCEED
30 THIRTY YEARS"
31 Line 14, after the period, insert "AD VALOREM TAXES LEVIED TO PAY GENERAL
32 OBLIGATION BONDS OF A DISTRICT ARE LIMITED TAXES SUBJECT TO THE MAXIMUM

- 1 AUTHORIZED TAX RATE APPROVED AT ELECTION AND DO NOT CONSTITUTE UNLIMITED AD
- 2 VALOREM TAXES."
- 3 Page 38, line 40, after "ALL" insert "GENERAL OBLIGATION"
- 4 Line 44, after the second "THE" insert "GENERAL OBLIGATION"
- 5 Page 39, strike "TWENTY-FIVE" insert "THIRTY"
- 6 Page 40, line 23, after "DISTRICT" insert ", THE TERM OF WHICH MAY NOT EXCEED
- 7 THIRTY YEARS"
- 8 Line 31, line 27, strike "TWENTY-FIVE" insert "THIRTY"
- 9 Strike lines 32 through 34
- 10 Reletter to conform
- 11 Line 49, after "MUNICIPALITY" insert ", THE COUNTY"
- 12 Page 41, line 2, after "MUNICIPALITY" insert ", THE COUNTY"
- 13 Line 6, after "DISTRICT" insert ", THE TERM OF WHICH MAY NOT EXCEED THIRTY
- 14 YEARS"
- 15 Page 43, Between lines 5 and 6, insert:
- 16 "1. STATES THAT THE DISTRICT IS "STATE-CERTIFIED" TO INDICATE THAT
- 17 ITS FORMATION WAS APPROVED BY THE AUTHORITY."
- 18 Renumber to conform
- 19 Strike lines 7 through 10
- 20 Renumber to conform
- 21 Between lines 13 and 14, insert:
- 22 "1. STATES THAT THE DISTRICT IS "STATE-CERTIFIED" TO INDICATE THAT
- 23 ITS FORMATION WAS APPROVED BY THE AUTHORITY."
- 24 Renumber to conform
- 25 Strike lines 15 through 19
- 26 Renumber to conform
- 27 Line 22, after the second "ELECTION" insert "AND NOT A GENERAL ELECTION AND IS
- 28 NOT SUBJECT TO THE REQUIREMENTS APPLICABLE TO ELECTIONS FOR GENERAL
- 29 GOVERNMENTAL BODIES, INCLUDING ONE-PERSON-ONE-VOTE PRINCIPLES. AN ELECTION
- 30 UNDER THIS ARTICLE SHALL BE"
- 31 Line 38, strike "TWENTY-FIVE" insert "THIRTY"
- 32 Page 44, line 10, after "DISTRICT" insert "AND THEIR DESIGNATED REPRESENTATIVES"

1 Page 44, line 13, after the period insert "VOTING ELIGIBILITY IS BASED ON
2 OWNERSHIP OF REAL PROPERTY SUBJECT TO TAXATION OR ASSESSMENT BY THE
3 DISTRICT."

4 Line 27, strike "AND" insert a comma

5 Line 28, after "NO"" insert "AND FOR AN ASSESSMENT LEVY ELECTION, "ASSESSMENT,
6 YES" AND "ASSESSMENT, NO""

7 Line 37, after the period insert "ANY CHALLENGE TO THE CONDUCT OR OUTCOME OF
8 AN ELECTION HELD PURSUANT TO THIS CHAPTER MUST BE COMMENCED WITHIN THIRTY
9 DAYS AFTER THE CANVASS OF THE ELECTION AND SHALL BE LIMITED TO WHETHER THE
10 DISTRICT COMPLIED WITH THE PROCEDURAL REQUIREMENTS OF THIS CHAPTER."

11 Page 45, between lines 2 and 3, insert:

12 "H. NOTWITHSTANDING ANY OTHER PROVISION OF THIS ARTICLE, IF THE
13 DISTRICT RECEIVES A CONSENT TO WAIVER SIGNED BY OWNERS OF ALL OF THE LAND
14 IN THE DISTRICT, THE DISTRICT MAY WAIVE ANY OR ALL REQUIREMENTS OF POSTING,
15 PUBLICATION, MAILING, NOTICE, HEARING AND LANDOWNER ELECTION OTHERWISE
16 REQUIRED IN CONNECTION WITH ASSESSMENTS OR ASSESSMENT BONDS. ON RECEIPT OF
17 SUCH CONSENT TO WAIVER, THE DISTRICT MAY LEVY THE ASSESSMENT AND ISSUE THE
18 ASSESSMENT BONDS WITHOUT BEING REQUIRED TO COMPLY WITH THE PROVISIONS OF
19 THIS ARTICLE FOR POSTING, PUBLICATION, MAILING, NOTICE, HEARING OR
20 LANDOWNER ELECTION."

21 Line 14, after "SHOWING" insert " , ON AN AGGREGATE AND SUMMARY BASIS,"

22 Page 49, line 5, strike "FEE-TITLE"

23 Line 9, after the period, insert "THE ADDITION OF PROPERTY TO A DISTRICT
24 PURSUANT TO THIS SECTION DOES NOT CONSTITUTE THE FORMATION OF A NEW
25 DISTRICT AND DOES NOT REQUIRE COMPLIANCE WITH THE PROCEDURES APPLICABLE TO
26 INITIAL DISTRICT FORMATION OR TO AMENDING THE FORMATION ORDER PURSUANT TO
27 SECTION 48-7041, SUBSECTION K."

28 Between lines 15 and 16, insert:

29 "D. THE AUTHORITY SHALL APPROVE THE ADDITION OR DELETION OF PROPERTY
30 UPON DETERMINING THAT THE REQUIREMENTS OF THIS SECTION HAVE BEEN SATISFIED
31 AND WILL AMEND THE FORMATION ORDER ACCORDINGLY."

1 Page 49, line 39, strike "EITHER" insert "THE AUTHORITY VERIFIES THAT"; strike
2 "OR A"

3 Strike line 40, insert "OUTSTANDING."

4 Line 42, strike "FEE-TITLE"

5 Page 50, between lines 10 and 11, insert:

6 "Sec. 5. Legislative findings; purpose

7 A. The legislature finds and declares that:

8 1. The provision of public infrastructure in advance of development
9 is essential to housing affordability, economic development and orderly
10 growth.

11 2. State housing affordability districts provide a uniform,
12 statewide mechanism for financing public infrastructure in a manner that:

13 (a) Protects taxpayers through limited tax rates and debt
14 limitations.

15 (b) Ensures transparency and public accountability.

16 (c) Facilitates early delivery of public infrastructure at lower
17 cost.

18 3. The Arizona finance authority is the appropriate statewide
19 certification authority to ensure uniform financial, engineering, and
20 statutory compliance for such districts.

21 4. The certification and oversight functions provided in this
22 chapter constitute governmental functions serving valid public purposes.

23 B. The legislature further finds and declares that:

24 1. State housing affordability districts exercise limited, special-
25 purpose governmental powers relating solely to the financing, construction,
26 operation and maintenance of public infrastructure.

27 2. The financial obligations of a district, including ad valorem
28 taxes, assessments, and liens, are borne directly and proportionally by
29 real property within the district.

30 3. Because the powers and financial burdens of a district
31 disproportionately affect real property owners, it is reasonable and

1 constitutionally permissible to allocate voting power in district elections
2 based on land ownership and acreage.

3 4. Elections conducted pursuant to this chapter are fiscal
4 determinations relating to property-based obligations and are not general
5 political elections."

6 Renumber to conform

7 Amend title to conform

JEFF WENINGER

2999WENINGER.1.docx

02/16/2026

7:37 PM

H: PB/lis/ra